

MUTUAL NON-DISCLOSURE AGREEMENT

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Section 2. Definition of Confidential Information

Confidential Information includes non-public technical, business, financial, customer, product, and security information disclosed by either party.

Information is not confidential if it is publicly available without breach, already known without restriction, independently developed, or rightfully received from a third party.

Section 4.1 Term of Confidentiality

Marker: EVAL-NDA-4.1.

Each party's confidentiality obligations continue for five years after disclosure.

Trade secrets remain protected for as long as they qualify as trade secrets under applicable law.

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Section 6.2 Return or Destruction

Marker: EVAL-NDA-6.2.

Upon written request, the receiving party must return or destroy Confidential Information within 10 business days.

One archival copy may be retained solely for legal compliance and backup purposes, subject to continuing confidentiality obligations.

Section 8.1 Equitable Relief

Marker: EVAL-NDA-8.1.

The parties agree that unauthorized disclosure may cause irreparable harm for which monetary damages are inadequate.

The disclosing party may seek injunctive or other equitable relief without posting bond where permitted by law.